We create chemistry

Safety data sheet

1. Substance/preparation and manufacturer/supplier identification

Product name:
2-ETHYLHEXYL ACRYLATE

Use: Chemical

Manufacturer/supplier:
BASF Japan Ltd.
OVOL Nihonbashi Building 3F
3-4-4 Nihonbashi Muromachi, Chuo-ku
Tokyo, 103-0022, JAPAN
Telephone: +81-3-5290-3000
Telefax number: +81-3-5290-3333

Emergency information:
Telephone: 03-6634-2245
+49 180 2273-112 (International emergency number)

2. Hazard identification

Classification of the substance and mixture:
Flammable liquids: Cat.4
Acute toxicity: Cat.5 (oral)
Skin irritation: Cat.2
Skin sensitization: Cat.1B
Specific target organ toxicity — single exposure: Cat.3 (irritating to respiratory system)
Hazardous to the aquatic environment - acute: Cat.2
Hazardous to the aquatic environment - chronic: Cat.3

Label elements and precautionary statement:

Pictogram:

Signal Word:
Warning

Hazard Statement:

H227	Combustible liquid.
H315	Causes skin irritation.
H303	May be harmful if swallowed.
H317	May cause an allergic skin reaction.
H335	May cause respiratory irritation.
H412	Harmful to aquatic life with long lasting effects.
H401	Toxic to aquatic life.

Precautionary Statements (Prevention):

P280	Wear protective gloves and eye protection or face protection.
P261	Avoid breathing mist or vapour or spray.
P271	Use only outdoors or in a well-ventilated area.
P273	Avoid release to the environment.
P210	Keep away from heat, hot surfaces, sparks, open flames and other ignition sources. No smoking.
P272	Contaminated work clothing should not be allowed out of the workplace.
P264	Wash contaminated body parts thoroughly after handling.

Precautionary Statements (Response):

P312	Call a POISON CENTER or physician if you feel unwell.
P304 + P340	IF INHALED: Remove person to fresh air and keep comfortable for breathing.
P302 + P352	IF ON SKIN: Wash with plenty of soap and water.
P333 + P313	If skin irritation or rash occurs: Get medical attention.
P332 + P313	If skin irritation occurs: Get medical attention.
P362 + P364	Take off contaminated clothing and wash it before reuse.
P370 + P378	In case of fire: Use water spray, dry powder, foam or carbon dioxide for extinction.

Precautionary Statements (Storage):

P403 + P233	Store in a well-ventilated place. Keep container tightly closed.
P405	Store locked up.

Precautionary Statements (Disposal):

P501	Dispose of contents and container to hazardous or special waste collection point.

Other hazards which do not result in classification:
If applicable information is provided in this section on other hazards which do not result in classification but which may contribute to the overall hazards of the substance or mixture.
See section 12 - Results of PBT and vPvB assessment.

3. Composition/information on ingredients

Chemical nature

Substance nature: single product

2-ethylhexyl acrylate
CAS Number: 103-11-7
ENCS: (2)-990
ISHL: (2)-990

Hazardous ingredients

2-ethylhexyl acrylate

Content (W/W): >= 99.6 % - <= 100 % CAS Number: 103-11-7 ENCS: (2)-990 ISHL: (2)-990	Flam. Liq.: Cat. 4 Acute Tox.: Cat. 5 (oral) Skin Irrit.: Cat. 2 Skin Sens.: Cat. 1B STOT SE: Cat. 3 (irr. to respiratory syst.) Aquatic Acute: Cat. 2 Aquatic Chronic: Cat. 3

4. First-Aid Measures

General advice:
First aid personnel should pay attention to their own safety. If the patient is likely to become unconscious, place and transport in stable sideways position (recovery position). Immediately remove contaminated clothing.

If inhaled:
Keep patient calm, remove to fresh air, seek medical attention.

On skin contact:
Wash thoroughly with soap and water

On contact with eyes:
Wash affected eyes for at least 15 minutes under running water with eyelids held open, consult an eye specialist.

On ingestion:
Immediately rinse mouth and then drink 200-300 ml of water, seek medical attention.

Note to physician:
Symptoms: Information, i.e. additional information on symptoms and effects may be included in the GHS labeling phrases available in Section 2 and in the Toxicological assessments available in Section 11.
Hazards: Information, i.e. additional information on symptoms and effects may be included in the GHS labeling phrases available in Section 2 and in the Toxicological assessments available in Section 11. (Further) symptoms and / or effects are not known so far
Treatment: Treat according to symptoms (decontamination, vital functions), no known specific antidote.

5. Fire-Fighting Measures

Suitable extinguishing media:
dry powder, water spray, carbon dioxide, foam

Unsuitable extinguishing media for safety reasons:
water jet

Additional information:
Use extinguishing measures to suit surroundings.

Specific hazards:
Risk of violent self-polymerization if overheated in a container. Cool endangered containers with water-spray.

The product is combustible. See SDS section 7 - Handling and storage.

Special protective equipment:
Wear a self-contained breathing apparatus. Special protective equipment for firefighters

Further information:
Extend fire extinguishing measures to the surroundings. Fight fire from maximum distance. Vapours are heavier than air and may accumulate in low areas and travel a considerable distance up to the source of ignition.

Further information:
In case of a fire in the vicinity a restabilization system should be used if the temperature in the bulk storage-tank reaches 45°C. Evacuate area of all unnecessary personnel. In case of a fire in the vicinity evacuate all personnel in a greater area if the temperature in the bulk storage-tank reaches 60°C.

Further information:
Dispose of fire debris and contaminated extinguishing water in accordance with official regulations.

6. Accidental Release Measures

Personal precautions:
Handle in accordance with good industrial hygiene and safety practice.

Avoid all sources of ignition: heat, sparks, open flame.Use antistatic tools.

Environmental precautions:
Discharge into the environment must be avoided.

Methods for cleaning up or taking up:
For large amounts: Pump off product.
Spills should be contained, solidified, and placed in suitable containers for disposal. Dispose of absorbed material in accordance with regulations. Ensure adequate ventilation. Suppress gases/vapours/mists with water spray jet. Clean contaminated floors and objects thoroughly with

water and detergents, observing environmental regulations. Cleaning operations should be carried out only while wearing breathing apparatus. Pick up with suitable appliance and dispose of.

Additional information: High risk of slipping due to leakage/spillage of product.

Release of substance/product can cause fire or explosion. Shut off or stop source of leak. Shut off or stop released substance/product under safe conditions.

Pack in tightly closed containers for disposal.

7. Handling and Storage

Handling

Handle in accordance with good industrial hygiene and safety practice. The substance/ product may be handled only by appropriately trained personnel. Facility parts must be checked for polymer residues and cleaned on regular basis in order to avoid hazardous reactions.

Ensure thorough ventilation of stores and work areas. Encapsulation or exhaust ventilation required. When filling, transferring, or emptying of containers, adequate local exhaust ventilation is necessary. Vent waste air to atmosphere only through suitable separators. Check the condition of seals and connector screw threads. Do not open warm or swollen product containers. Remove persons to safety and alert fire brigade.

The temperatures which must be avoided are to be considered. Protect against heat. Protect from direct sunlight. Protect contents from the effects of light.

Ensure adequate inhibitor and dissolved oxygen level.

Protection against fire and explosion:
Avoid all sources of ignition: heat, sparks, open flame. Substance/product can form explosive mixture with air. Ground all transfer equipment properly to prevent electrostatic discharge. It is recommended that all conductive parts of the machinery are grounded. Explosion-proof equipment is not necessary when loading and processing of the product takes place at a minimum of 5 °C below the flash point.

Heated containers should be cooled to prevent polymerization. If exposed to fire, keep containers cool by spraying with water. Emergency cooling must be provided for the eventuality of a fire in the vicinity.

Storage

Further information on storage conditions: Prior to storage ensure that the transfer equipment used and the intended storage containers do not contain other substances/products. Before transfer to stock the identity of the product must be proved to be without doubt. The entrance to storage rooms is to be granted only to appropriately trained personnel.
The stabilizer is only effective in the presence of oxygen. Maintain contact with atmosphere containing 5 - 21% oxygen. Never use tanks with inert-gas installation for storage.
Risk of polymerization. Protect against heat. Protect from direct sunlight. Avoid UV-light and other radiation with high energy. Protect against contamination.
In case of bulk storage, the storage-tanks should at least be equipped with two high temperature alert devices.
Even if the product is stored and handled as prescribed/indicated it should be used up within the indicated duration of storage.

Storage stability:
Storage temperature: < 35 °C
Storage duration: 12 Months
The stated storage temperature should be noted.
Avoid prolonged storage.
This product should be processed as soon as possible.
Ensure adequate inhibitor and dissolved oxygen level.
The product is stabilized, the shelf life should be noted.
Do not store with less than 10 % headspace above liquid.
Storage stability is based upon ambient temperatures and conditions described.
Storage temperature: 45 °C
A restabilization system should be used if the temperature in the bulk storage-tank reaches the indicated value.
Storage temperature: 60 °C
All personnel in a greater area should be evacuated if the temperature in the bulk storage-tank reaches the indicated value.

8. Exposure controls and personal protection

Components with occupational exposure limits

2-ethylhexyl acrylate, 103-11-7;
(OEL (JP))
Included in the regulation, but with no data values - See the regulation for further details

Personal protective equipment

Respiratory protection:
Suitable respiratory protection for lower concentrations or short-term effect: Gas filter for gases/vapours of organic compounds (boiling point >65 °C, e. g. EN 14387 Type A)

Hand protection:
Suitable materials also with prolonged, direct contact (Recommended: Protective index 6, corresponding > 480 minutes of permeation time according to EN ISO 374-1):
fluoroelastomer (FKM) - 0.7 mm coating thickness
nitrile rubber (NBR) - 0.4 mm coating thickness
Supplementary note: The specifications are based on tests, literature data and information of glove manufacturers or are derived from similar substances by analogy. Due to many conditions (e.g. temperature) it must be considered, that the practical usage of a chemical-protective glove in practice may be much shorter than the permeation time determined through testing. Manufacturer's directions for use should be observed because of great diversity of types.

Eye protection:
Safety glasses with side-shields (frame goggles) (e.g. EN 166)

Body protection:
Body protection must be chosen depending on activity and possible exposure, e.g. apron, protecting boots, chemical-protection suit (according to EN 14605 in case of splashes or EN ISO 13982 in case of dust).

General safety and hygiene measures:
Avoid contact with the skin, eyes and clothing. Avoid inhalation of vapour. Wearing of closed work clothing is required additionally to the stated personal protection equipment. Handle in accordance with good industrial hygiene and safety practice.

9. Physical and Chemical Properties

Form:	liquid	
Colour:	colourless	
Odour:	ester-like	
Odour threshold:	not determined	
pH value:	7.3 - 8.2 (water, approx. 9.3 mg/l, 25 °C)	(OECD Guideline 105)
Melting point:	-90 °C Literature data.	
Boiling point:	215 °C (1,013 hPa) Literature data.	
Flash point:	86 °C Literature data.	(closed cup)
Evaporation rate:	Value can be approximated from Henry's Law Constant or vapor pressure.	
Flammability (solid/gas):	Combustible liquid.	(derived from flash point)
Lower explosion limit:	0.9 %(V) (82.5 °C) For liquids not relevant for classification and labelling.	
Upper explosion limit:	6.0 %(V) (126 °C) For liquids not relevant for classification and labelling.	
Ignition temperature:	252 °C Literature data.	
Thermal decomposition:	No decomposition if stored and handled as prescribed/indicated.	
Self ignition:	Based on its structural properties the product is not classified as self-igniting.	Test type: Spontaneous self-ignition at room-temperature.
Self heating ability:	not applicable, the product is a liquid	
SADT:	Not a substance/mixture liable to self-decomposition according to GHS.	

Explosion hazard:	Based on the chemical structure there is no indication of explosive properties.	
Fire promoting properties:	Based on its structural properties the product is not classified as oxidizing.	
Vapour pressure:	0.24 hPa (25 °C) Literature data.	(measured)
Density:	0.88 g/cm3 (20 °C) Literature data.	
Relative density:	0.88 (20 °C)	
Relative vapour density (air):	6.4 (20 °C) Heavier than air.	(calculated)
Solubility in water:	9.6 mg/l (25 °C)	
Solubility (qualitative) solvent(s):	organic solvents miscible	
Partitioning coefficient n-octanol/water (log Pow):	4.64 (25 °C)	(OECD Guideline 107)
Adsorption/water - soil:	KOC: 360; log KOC: 2.56	(calculated)
Surface tension:	Based on chemical structure, surface activity is not to be expected.	
Viscosity, dynamic:	1.75 mPa.s (20 °C)	(OECD Guideline 114)
	1.19 mPa.s (40 °C)	(OECD Guideline 114)
Viscosity, kinematic:	(20 °C) not determined	
Molar mass:	184.28 g/mol	

Particle characteristics

Particle size distribution: The substance / product is marketed or used in a non solid or granular form. -

10. Stability and Reactivity

Conditions to avoid:
Avoid heat. Avoid oxygen content above the product of less than 5 %. Avoid UV-light and other radiation with high energy. Avoid direct sunlight. Avoid prolonged storage. Avoid inhibitor loss. Avoid excessive temperatures.

Thermal decomposition:	No decomposition if stored and handled as prescribed/indicated.

Substances to avoid:
radical formers, free radical initiators, peroxides, mercaptans, nitro-compounds, perborates, azides, ether, ketones, aldehydes, amines, nitrates, nitrites, oxidizing agents, reducing agents, strong bases, acid anhydrides, acid chlorides, concentrated mineral acids, metal salts
Inert gas

Corrosion to metals: No corrosive effect on metal.

Hazardous reactions:
Explosion and fire hazard exists under confined conditions. Ignitable air mixtures can form when the product is heated above the flash point and/or when sprayed or atomized. Formation of explosive gas/air mixtures.
Polymerization coupled with heat formation.
Risk of spontaneous polymerization by oxygen depletion of the liquid phase. Risk of spontaneous polymerization when heated or in the presence of UV radiation. Risk of spontaneous and violent self-polymerization if inhibitor is lost or product is exposed to excessive heat. Polymerization produces gases which may burst closed or confined containers. Reactions may cause ignition.
Risk of spontaneous polymerization in the presence of starters for radical chain reactions (e.g. peroxides). Reacts with nitric acid. Risk of spontaneous polymerization in the presence of oxidizing agents.
Hazardous reactions in presence of mentioned substances to avoid.
The product is stabilized against spontaneous polymerization prior to despatch. The product is stable if stored and handled as prescribed/indicated.

Hazardous decomposition products:
No hazardous decomposition products if stored and handled as prescribed/indicated.

Chemical stability:
The product is stable if stored and handled as prescribed/indicated.

Reactivity:
No hazardous reactions if stored and handled as prescribed/indicated.

11. Toxicological Information

Routes of exposure

Acute oral toxicity

Experimental/calculated data:
LD50rat (oral): approx. 4,435 mg/kg (BASF-Test)

Acute inhalation toxicity

rat (by inhalation): 8 h (IRT)
No mortality within the stated exposition time as shown in animal studies. The vapour was tested.

Acute dermal toxicity

LD50 rabbit (dermal): 7,522 mg/kg

Assessment of acute toxicity

Of low toxicity after single ingestion. Virtually nontoxic after a single skin contact. The inhalation of a highly enriched/saturated vapor-air-mixture represents an unlikely acute hazard.

Symptoms

Information, i.e. additional information on symptoms and effects may be included in the GHS labeling phrases available in Section 2 and in the Toxicological assessments available in Section 11.

Irritation

Assessment of irritating effects:
Not irritating to the eyes. Skin contact causes irritation.

Experimental/calculated data:
Skin corrosion/irritation rabbit: Irritant. (BASF-Test)

Serious eye damage/irritation rabbit: non-irritant (OECD Guideline 405)

Respiratory/Skin sensitization

Assessment of sensitization:
Sensitization after skin contact possible.

Experimental/calculated data:
Mouse Local Lymph Node Assay (LLNA) mouse: skin sensitizing (OECD Guideline 429)

Mouse Local Lymph Node Assay (LLNA) mouse: skin sensitizing (OECD Guideline 429)

Germ cell mutagenicity

Assessment of mutagenicity:
In the majority of studies performed with microorganisms and in mammalian cell culture, a mutagenic effect was not found. A mutagenic effect was also not observed in in vivo tests.

Carcinogenicity

Assessment of carcinogenicity:
Long-term exposure to highly irritating concentrations resulted in skin tumors in animals. A carcinogenic effect in humans can be excluded after brief skin contact. IARC (International Agency for Research on Cancer) has classified this substance as group 2B (The agent is possibly carcinogenic to humans).

Reproductive toxicity

Assessment of reproduction toxicity:
The results of animal studies gave no indication of a fertility impairing effect. The product has not been tested. The statement has been derived from substances/products of a similar structure or composition.

Developmental toxicity

Assessment of teratogenicity:
No indications of a developmental toxic / teratogenic effect were seen in animal studies. The product has not been fully tested. The statements have been derived in parts from products of a similar structure or composition.

Specific target organ toxicity (single exposure)

Causes temporary irritation of the respiratory tract.

Repeated dose toxicity and Specific target organ toxicity (repeated exposure)

Assessment of repeated dose toxicity:
The substance may cause damage to the olfactory epithelium after repeated inhalation. After repeated exposure the prominent effect is local irritation.

Aspiration hazard

No aspiration hazard expected.

12. Ecological Information

Ecotoxicity

Assessment of aquatic toxicity:
Acutely toxic for aquatic organisms. The inhibition of the degradation activity of activated sludge is not anticipated when introduced to biological treatment plants in appropriate low concentrations.

Toxicity to fish:
LC50 (96 h) 1.81 mg/l, Oncorhynchus mykiss (OECD Guideline 203, semistatic)
The statement of the toxic effect relates to the analytically determined concentration.

Aquatic invertebrates:
EC50 (48 h) 1.3 mg/l, Daphnia magna (OECD Guideline 202, part 1, static)
The statement of the toxic effect relates to the analytically determined concentration.

Aquatic plants:
EC50 (72 h) 1.71 mg/l (growth rate), Scenedesmus subspicatus (OECD Guideline 201, static)
The statement of the toxic effect relates to the analytically determined concentration.

Microorganisms/Effect on activated sludge:
EC20 (30 min) > 1,000 mg/l, activated sludge, domestic (DIN EN ISO 8192, aquatic)
Nominal concentration.

Chronic toxicity to fish:
Study not necessary due to exposure considerations.

Chronic toxicity to aquatic invertebrates:
EC10 (21 d), 0.91 mg/l, Daphnia magna (OECD Guideline 211, semistatic)

Assessment of terrestrial toxicity:
No effects at the highest test concentration.

The product has not been tested. The statement has been derived from substances/products of a similar structure or composition.

Soil living organisms:
EC50 (28 d) > 1,000 mg/kg, soil dwelling microorganisms (OECD Guideline 217, natural soil)
The product has not been tested. The statement has been derived from substances/products of a similar structure or composition.

Terrestrial plants:
No data available.

Other terrestrial non-mammals:
No data available.

Mobility

Assessment transport between environmental compartments:
The substance will not evaporate into the atmosphere from the water surface.
Adsorption to solid soil phase is not expected.

Persistence and degradability

Elimination information:
70 - 80 % BOD of the ThOD (28 d) (OECD Guideline 301 F) (aerobic, activated sludge, domestic)

Assessment of stability in water:
In contact with water the substance will hydrolyse slowly.

Information on Stability in Water (Hydrolysis):
$t_{1/2}$ 18.5 h (25 °C, pH value 11.0), (other, other)

$t_{1/2}$ 210 h (25 °C, pH value 7.0), (other, pH 7)

$t_{1/2}$ 533 h (25 °C, pH value 3.0), (other, other)

Bioaccumulation potential

Assessment bioaccumulation potential:
Does not accumulate in organisms.

Bioaccumulation potential:
Bioconcentration factor: 347 (28 d), Cyprinus carpio (OECD Guideline 305)
Does not accumulate in organisms.

Additional information

Other ecotoxicological advice:
Do not discharge product into the environment without control.

13. Disposal Considerations

Must be sent to a suitable incineration plant, observing local regulations.

Contaminated packaging:
Uncleaned empties should be disposed of in the same manner as the contents.

14. Transport Information

Domestic transport:

	Not classified as a dangerous good under transport regulations
UN number or ID number	Not applicable
UN proper shipping name:	Not applicable
Transport hazard class(es):	Not applicable
Packing group:	Not applicable
Environmental hazards:	Not applicable
Special precautions for user	None known

Sea transport
IMDG

	Not classified as a dangerous good under transport regulations
UN number or ID number:	Not applicable
UN proper shipping name:	Not applicable
Transport hazard class(es):	Not applicable
Packing group:	Not applicable
Environmental hazards:	Not applicable Marine pollutant: no
Special precautions for user	None known

Air transport
IATA/ICAO

	Not classified as a dangerous good under transport regulations
UN number or ID number	Not applicable
Proper shipping name:	Not applicable
Transport hazard class(es):	Not applicable
Packing group:	Not applicable
Environmental hazards:	Not applicable
Special precautions for user	None known

Maritime transport in bulk according to IMO instruments

Regulation:	IBC-Code
Product name:	2-Ethylhexyl acrylate
Pollution category:	Y
Ship Type:	3

ERG-number: 128

See Section 15 for domestic transport regulations

15. Regulatory Information

Japanese Fire Service Law: 4th group, Petroleum Group 3, Not water soluble liquid

2-ethylhexyl acrylate
ISHL, SDS and Risk Assessment Requirements (JP)
MSDS, JP

2-ethylhexyl acrylate
ISHL, Hazardous Substances Labeling Requirements (JP)
ISHLLR, JP

International Bulk Chemical Code
IBC Code, Chapter 17, Minimum Requirements
2007
Pollutant Category: Y
Category Y: Noxious liquid substances which, if discharged into the sea from tank cleaning or deballasting operations, are deemed to present a hazard to either marine resources or human health or cause harm to amenities or other legitimate uses of the sea and therefore justify a limitation on the quality and quantity of the discharge into the marine environment.

International Bulk Chemical Code
IBC Code, Chapter 17, Minimum Requirements
2007
Hazard code(s): S/P
S/P: the product is included in the Code because of both its safety and pollution hazards.

International Bulk Chemical Code
IBC Code, Chapter 17, Minimum Requirements
2007
Ship Type: 3
Ship type 3: a chemical tanker intended to transport products with sufficiently severe environmental and safety hazards which require a moderate degree of containment to increase survival capability in a damaged condition.

Wassenaar Arrangement
Wassenaar Arrangement, Munitions List, Energetic Materials (ML8)
12 2013
Section: ML8.n.1.m
ML8. only applies to the following substances when they are compounded or mixed with substances specified by ML8.a. or powdered metals specified by ML8.c.
listed

Skin and Eye Damaging or Absorbing Substances for PPE Requirement (ISHL Ministerial Ordinance Art. 594-2, MHLW Labour Standard Bureau Circular No. 0704-1), as amended (Japan)
2-ethylhexyl acrylate

Chemical name or elemental	PRTR (from April 1st, 2023)

component	Consistency (%)	Classification, Control No.	Cabinet order name
2-ethylhexyl acrylate	100	Class 1, 564	2-Ethylhexyl acrylate

Law Relating to the Prevention of Marine Pollution and Maritime Disaster (Japan)
Marine Pollution Prevention Law (JP)
Applies at any concentration:
Category: Y
Noxious liquid substances which, if discharged into the sea from tank cleaning or deballasting operations, are deemed to present a hazard to either marine resources or human health or cause harm to amenities or other legitimate uses of the sea and therefore justify a limitation on the quality and quantity of the discharge into the marine environment.

Law Relating to the Prevention of Marine Pollution and Maritime Disaster (Japan)
Marine Pollution Prevention Law (JP)
Modulus: 1
Category: Y
Noxious liquid substances which, if discharged into the sea from tank cleaning or deballasting operations, are deemed to present a hazard to either marine resources or human health or cause harm to amenities or other legitimate uses of the sea and therefore justify a limitation on the quality and quantity of the discharge into the marine environment.

Other regulations

If other regulatory information applies that is not already provided elsewhere in this safety data sheet, then it is described in this subsection.

16. Other Information

Compliant with JIS Z 7252/7253 :2019] Required items that are not described in this SDS indicate that there is no information

Some of the SDS and risk assessment required substances under Industrial Safety and Health Law are indicated with concentration range in SDS for trade secret protection.

Vertical lines in the left hand margin indicate an amendment from the previous version.

The data contained in this safety data sheet are based on our current knowledge and experience and describe the product only with regard to safety requirements. This safety data sheet is neither a Certificate of Analysis (CoA) nor technical data sheet and shall not be mistaken for a specification agreement. Identified uses in this safety data sheet do neither represent an agreement on the corresponding contractual quality of the substance/mixture nor a contractually designated use. It is the responsibility of the recipient of the product to ensure any proprietary rights and existing laws and legislation are observed.